

23TRCV00503 23TRCV00503

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Case Number: 23TRCV00503 Hearing Date: June 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

SALVADOR CHAVEZ

;

Plaintiff,

vs.

american honda motor co.,

inc.

;

Defendant.

Case

No.:

23TRCV00503

Hearing

Date:

June
29, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

Plaintiff

salvador chavez's MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiff, Salvador Chavez

RESPONDING

PARTY: Defendant, American Honda
Motor Co., Inc.

(1)

Plaintiff

Salvador Chavez's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of \$7,204.16 pursuant to Civil Code section 1794, subdivision (d).

The Court considers the moving papers filed on May 28, 2026, the opposition brief filed on June 15, 2026, and the reply brief filed on June 22, 2026.

Factual Background

On February 22, 2023, plaintiff Salvador Chavez ("Plaintiff") filed the Complaint against defendants American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10.

On October 27, 2023, Plaintiff filed the First Amended Complaint ("FAC") against Defendant and DOES 1 through 10.

On February 9, 2024, Plaintiff filed the Second Amended Complaint (“SAC”) against Defendant and DOES 1 through 10.

On May 24, 2024, Plaintiff filed the Third Amended Complaint (“TAC”) against Defendant and DOES 1 through 10, which included two causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty and (2) Fraudulent Inducement.

On August 29, 2024, the Court sustained Defendant’s demurrer as to the second cause of action. (August 29, 2024 Minute Order, p. 1.) The Court did not grant Plaintiff leave to amend this cause of action. (August 29, 2024 Minute Order, p. 1.)

Subsequently, on May 29, 2025, the parties reached a settlement through a Section 998 offer of \$55,000.00. (Declaration of Roger Kirnos (“Karnos Decl.”), ¶ 13, Exh. C.) Defendant agreed that Plaintiff would be considered the prevailing party for the purposes of recovering attorneys’ fees, costs, and expenses. (Karnos Decl., ¶ 13, Exh. C.)

On June 26, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On May 28, 2026, Plaintiff filed a memorandum of costs.

LEGAL STANDARD

Attorneys’ fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney’s fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)

Section 1794 provides: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees

based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).)

Thus, the statute includes a “reasonable attorney’s fees” standard. The attorney bears the burden of proof as to the “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (Ibid.)

A plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass’n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) The factors that courts look at to determine if a multiplier is reasonable are: “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award” and (4) the success

achieved. (Serrano v. Priest
(1977) 20 Cal.3d 25, 49 (Serrano).)

No specific findings

reflecting the court's calculations are required. The record only needs to show that the attorney's fees were awarded according to the "lodestar" or "touchstone"

approach. The court's focus in

evaluating the facts should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided.¿ The starting point for this determination is the attorney's time records. (Horsford v. Board of Trustees of Calif.

State Univ. (2005) 132 Cal.App.4th 359, 395-397 [verified time records entitled to credence absent clear indication they are erroneous].) However, California case law permits fee awards in the absence of detailed time sheets. (Sommers v. Erb (1992) 2

Cal.App.4th 1644, 1651; Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1810; Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 103.) An experienced trial judge is

in a position to assess the value of the professional services rendered in his or her court. (Serrano, supra, 20 Cal.3d 25 at p. 49.)

DISCUSSION

It is undisputed that

Plaintiff is the prevailing party in this action, and is therefore entitled to attorneys' fees, costs, and expenses pursuant to Civil Code section 1794, subdivision (d). (Motion, pp. 3:5-4:5.) Plaintiff moves for a total award of \$21,287.16, which encompasses (1) \$13,467.00 in attorneys' fees, (2) a 1.5 multiplier amounting to \$6,823.50, and (3) \$996.66 in costs and expenses. (Motion, p. 2:10-16; Reply, p. 5:26-28.)

In response, Defendant

contends that the Court should either deny Plaintiff's motion in its entirety or reduce the requested amount to \$5,457.00 in attorneys' fees and \$996.66 in costs, resulting in a total of \$6,453.66.

(Opp., p. 15:12-15.)

Request to Deny Entire Motion

Defendant requests that the

Court deny Plaintiff's fee request in its entirety, asserting that the claimed fees are inflated, unreliable, and encompass non-compensable clerical work, as

well as block billing, excessive charges, and unreasonable requests. (Opp., pp. 5:2-3, 7:12-13, 9:10-12, 27-11:6.) The Court, however, denies this request.

In support of their position

to deny the fee request, Defendant references the case of *Mikhaeilpoor v.*

BMW of North America, LLC (2020) 48 Cal.App.5th 240 (*Mikhaeilpoor*). (Opp., pp. 9:27-11:5.) In *Mikhaeilpoor*, the Court of Appeal

determined that “[t]he amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased.” (*Mikhaeilpoor*, *supra*, 48

Cal.App.5th at p. 247.) Such

modifications are left to the discretion of the court. (*Id.* at p. 248.) Courts may consider several factors when

adjusting the lodestar amount, including: “ ‘(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the

litigation precluded other employment by the attorneys; [and] (3) the

contingent nature of the fee award, both from the point of view of eventual

victory on the merits and the point of view of establishing eligibility for an

award.’ ” (*Ibid.*, quoting *Press*

v. Lucky Stores, Inc. (1983) 34 Cal.3d 311, 322.)

However, the Court declines to

deny Plaintiff’s request based on these considerations. Notably, the trial court and Court of Appeal involved

in *Mikhaeilpoor* did not opt for a total denial of the award, nor did they

imply that such an action would be appropriate.

Rather, the Court of Appeal affirmed the trial court’s decision to

reduce the billed hours to 225 and to adjust the hourly rates to \$350.00 after

thoroughly reviewing the invoice and determining that the initial request was

unreasonable. (*Mikhaeilpoor*, *supra*,

48 Cal.App.5th at pp. 245, 256.) In a

similar manner, the Court will assess Defendant’s proposed reductions and enact

any necessary adjustments.

Reasonableness of the Hourly Rates

Plaintiff requests the hourly

rates detailed in the following table. (Declaration

of Roger Kirnos (“Karnos Decl.”), ¶ 28, Exh. A.)

Name

Position

Years of Experience

2023 Hourly Rate

2024 Hourly Rate

2026 Hourly Rate

Nitin Sapra

Senior Attorney

7

N/A

N/A

\$450.00

Armando Lopez

Associate Attorney

8

\$375.00

\$400.00

N/A

Angelica Zamudio

Associate Attorney

4

\$175.00

N/A

N/A

Debra Reed

Associate Attorney II

Unknown

\$495.00

N/A

N/A

Elvira Kamosko

Associate Attorney

5

\$295.00

N/A

N/A

Harita Nandivada

Associate Attorney

5

\$375.00

N/A

N/A

Timothy Lupinek

Associate Attorney

13

\$415.00

\$450.00

N/A

Thach Tran

Associate Attorney

10

\$395.00

\$425.00

N/A

To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community, as well as “the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) In the present case, Roger Kirnos’s declaration presents a detailed account of the qualifications and experience of eight other attorneys. (Karnos Decl., ¶ 28.) With reference to this declaration and the Court’s own familiarity with the billing rates of Los Angeles-area counsel in similar lemon law cases, the Court finds that the attorneys’ rates are reasonable due to their experience and qualifications.

The Court acknowledges that Kirnos did not disclose the number of years Debra Reed has been licensed to practice law. Nevertheless, Kirnos states that Reed has accumulated several years of experience as a litigation attorney

for Google, served as a director for Disney Concerts, worked as a bankruptcy and civil litigation attorney, and subsequently held a position as an associate attorney for Plaintiff's counsel. (Kirnos Decl., ¶ 28c.) In addition, Kirnos indicates that Reed is licensed to practice in California, New York, and New Jersey. (Kirnos Decl., ¶ 28c.) Given Reed's substantial experience, the Court finds adequate evidence to determine that an hourly rate of \$495.00 is reasonable, despite the absence of information regarding the length of her bar status.

Reasonableness of the Hours Incurred

Fraud Claim

Defendant contends that the Court should apportion and decline to award \$8,190.00 in fees relating to Plaintiff's fraud causes of action on the grounds that "Plaintiff's fraud cause of action was ultimately dismissed with prejudice on or about August 29, 2024, making [Defendant] the prevailing party on that issue." (Opp., pp. 6:20-21.) Therefore, Defendant asserts that "Plaintiff was not a prevailing party on that matter [and] such fees cannot be awarded." (Opp., p. 6:2-3.) The Court agrees.

"When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action." (Akins v. Enterprise Rent-A-Car Co. of San Francisco (2000) 79 Cal.App.4th 1127, 1133.) "Such fees need not be apportioned when incurred for representation on an issue common to both causes of action in which fees are proper and those in which they are not. [Citation.] Apportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units." (Bell v. Vista Unified School District (2000) 82 Cal.App.4th 672, 687.)

According to Defendant, Plaintiff's counsel billed a total of \$8,190.00 from August 9, 2023, to April 12, 2024, related to their fraud cause of action. (Opp., p. 6:23-24; Declaration of Michael J. Kenny ("Kenny Decl."), ¶ 3.) This amount

includes the following entries: (1) \$79.00 for 0.2 hours spent by Thach Tran on reviewing Defendant's meet and confer letter regarding the motion for judgment on the pleadings on August 9, 2023; (2) \$891.00 for 1.8 hours spent by Debra Reed on preparing for and attending a case management conference on September 12, 2023; (3) \$249.00 for 0.6 hours spent by Timothy Lupinek on reviewing the motion for judgment on the pleadings on September 14, 2023; (4) \$664.00 for 1.6 hours spent by Timothy Lupinek on drafting an opposition to the motion for judgment on the pleadings on September 15, 2023; (5) \$187.50 for 0.5 hours spent by Armando Lopez on preparing for the hearing on the motion for judgment on the pleadings on September 29, 2023; (6) \$600.00 for 1.6 hours spent by Armando Lopez on attending the hearing on the motion for judgment on the pleadings on September 29, 2023; (7) \$79.00 for 0.2 hour spent by Thach Tran on discussing the amended complaint with colleagues following the ruling on the motion for judgment on the pleadings on October 23, 2023; (8) \$373.50 for 0.9 hours spent by Timothy Lupinek on reviewing the demurrer, participating in several phone calls to discuss an amended complaint, and drafting the FAC on October 27, 2023; (9) \$2,512.50 for 6.7 hours spent by Harita Nandivada on drafting opposition briefs to the demurrer and motion to strike on December 29, 2023; (10) \$920.00 for 2.3 hours spent by Armando Lopez on reviewing the tentative ruling, preparing for and attending the hearing on the demurrer and motion to strike, and drafting a hearing summary on January 12, 2024; (11) \$425.00 for 1.0 hours spent by Thach Tran on reviewing the court order and FAC, and drafting the SAC to comply with the court order on February 9, 2024; and (12) \$1,170.00 for 2.6 hours spent by Timothy Lupinek on reviewing Defendant's demurrer and motion to strike against the SAC, and drafting opposition briefs on April 12, 2024. (Kenny Decl., ¶ 3; Kirnos Decl., Exh. A.)

The Court clarifies that the total amount of these invoices is \$8,150.50, as opposed to \$8,190.00. Furthermore, the Court observes that the invoice dated September 12, 2023, pertains to a case management conference and is not related to a demurrer or a motion for judgment on the pleadings concerning Plaintiff's fraud claims. This adjustment results in a contested amount of \$7,259.50.

In contending that apportionment is unnecessary, Plaintiff references several cases, namely *Santana v. FCA US, LLC* (2020) 56 Cal.Rptr.3d 334, *Bowser v. Ford Motor Co.* (2022) 78 Cal.App.5th 587, and *Anderson v. Ford Motor Co.* (2022) 74 Cal.App.5th 946. (Reply, pp. 3:25-4:9.) Plaintiff asserts that "a court need not apportion fees between Song Beverly and fraud causes of action

because the tasks performed to gather the evidence required to establish the allegations for both involve a common core of facts and in these lemon law cases is both impractical and impossible." (Reply, pp. 3:25-4:1.)

Although the Court concurs that, in numerous instances, it may be impractical or impossible to apportion fees between claims that share significant commonalities, this particular case does not exemplify such a scenario. The fees under consideration pertain specifically to the meet-and-confer process, demurrers, motions to strike, and a motion for judgment on the pleadings that only directly involved Plaintiff's fraud claim. Defendant has submitted a list of apportioned fees for the Court's consideration. As a result, the Court declines to award \$7,259.50 in fees related to Plaintiff's fraud claim.

Excessive Charges, Clerical Charges, and Overstaffing

Defendant asserts that the Court should reduce the total award by \$2,500.00, arguing that this amount is solely "for clerical, excessive and duplicative work only made necessary as a result of over staffing this matter with 8 attorneys." (Opp., p. 6:25-26.) The Court disagrees.

While it is true that Plaintiff engaged eight attorneys for this case, this fact does not inherently suggest that the hours billed were excessive or duplicative, nor that they involved clerical or internal meetings that warrant a denial of attorney's fees. The mere presence of eight attorneys does not indicate overstaffing; they may have been necessary due to the unavailability of others or related to the circumstances of the case.

Furthermore, Defendant fails to provide any explanation or evidence to substantiate the claims that the particular entries in question are clerical, excessive, or duplicative. Consequently, the request to for any reduction of the award is DENIED.

Loadstar Multiplier

Plaintiff contends that their legal counsel should be granted a lodestar multiplier of 1.5. (Motion, pp. 11:19-12:22.) They assert that such a multiplier is warranted due to the contingent risks associated with pursuing this case and

the delays in payment. (Motion, p. 12:11-22.) The Court disagrees.

The factors that courts look at to determine if a multiplier is reasonable are: “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award[.]” and (4) the success achieved. (Serrano, supra, 20 Cal.3d at p. 49.) Nonetheless, courts must not consider extraordinary skill and the other Serrano factors to the extent these are already included in the lodestar. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138-1139.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Id. at p. 1139.)

The Court finds that a lodestar multiplier is not appropriate for this case, given the circumstances. This is a straightforward lemon law case, and there is nothing to suggest that it involves novel issues or that the quality of representation exceeded what would typically be provided by attorneys of comparable skill and experience billing at similar rates. Additionally, Plaintiff has not argued that their counsel was unable to take on more cases. While Plaintiff asserts that their counsel accepted the case solely on a contingency basis and experienced delayed payment, the Court believes that these considerations and the associated risks are already accounted for in the lodestar amount. This is because the substantial hourly rates approved by the Court reflect those typically charged for lemon law cases pursued on a contingency basis.

Based on the foregoing, the request for a lodestar multiplier is DENIED.

Costs and Expenses

Plaintiff seeks reimbursement in the amount of \$996.66 for incurred costs and expenses. (Motion, pp. 12:23-13:7.) In support of this request, Plaintiff has filed a memorandum of costs. (Kirnos Decl.,

¶ 2, Exh. B.) The costs appear to be reasonable on their face, and Defendant does not submit any objections to the requested sum. Accordingly, the Court concludes that the requested amount is appropriate.

ORDERS

1)

Plaintiff

Salvador Chavez's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of \$7,204.16.

2)

Plaintiff

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: June 29, 2026

Tamara

Hall

Judge

of the Superior Court